

TENTATIVE RULING

Alexandra Guadalupe Venegas, et al.

v.

County of Monterey, et al.

23CV002984

Minor's Compromise Petition

Hearing Date: August 21, 2026

After reviewing the unopposed minor's compromise petition ("Petition") filed by Rosa Guadalupe Romo ("Petitioner"), acting as guardian ad litem for seven-year-old Plaintiff Alexandra Guadalupe Venegas ("Plaintiff"), the Court hereby **CONTINUES** the hearing to September 18, 2026, at 8:30 a.m. in Department 14. This continuance allows Petitioner to file an Amended Petition and submit additional supporting documents by September 11 to address the issues discussed below.

First, the Petition contains inconsistencies. Regarding fees, paragraph 13 states that counsel seeks \$35,000, while paragraph 16c states \$22,667.05. Regarding Plaintiff's net settlement proceeds, paragraph 15 states \$40,000, but paragraph 16f states that such proceeds total \$75,000, which is incorrect because it does not account for the \$35,000 distributed to other family members. Petitioner and her counsel shall carefully review and file an Amended Petition consistent with the requested relief.

Second, Petitioner shall submit documents supporting her claimed expenses, specifically medical records (\$643.37), depositions (\$3,040.60), an expert (\$733.50), and filing and service of process (\$2,182.48). [Petition at ¶ 13b.] No further supporting documents are required regarding the "fees paid to Defendants." [*Ibid.*]

Third, Petitioner shall provide a declaration explaining why she is entitled to \$5,000 from Plaintiff's settlement proceeds. The mere fact that Petitioner is Plaintiff's mother and that the funds will be used for Petitioner's "immediate care" is insufficient for the Court. [Guardian Ad Litem Application at ¶¶ 6a and 11b, and Attachment 11b(6).]

Fourth, counsel shall explain how they calculated the requested \$22,667.05 fee. In her declaration, counsel Janie Ortiz-Acosta attests that her office shall "receive 25% after costs for recovery on behalf of a minor." [Attachment 13a to Petition at ¶ 1.] Counsel shall provide a detailed fee calculation to help the Court understand how they arrived at the fee amount.

Fifth, Petitioner shall explain why Xandro Venegas, Erika Venegas, and Angelica Garcia (collectively, "Other Claimants") are entitled to \$30,000 from Plaintiff's settlement proceeds. The Petition states that Xandro and Erika Venegas "suffered physical and emotional injuries as a result of this incident." [Petition at ¶ 6.] They also lack standing to pursue wrongful-death claims in this case. [See Summary Adjudication Order at p. 4.] Similarly, Angelica Garcia, the mother of decedent Alejandro Venegas, Jr. ("Decedent"), lacks standing [Code Civ. Proc. § 377.60,

subd. (a)] and has not shown that she was dependent on Decedent [id. at subd. (b)]. [See Summary Adjudication Order at 4-6.] At this time, Petitioner has not provided sufficient information to allow the Court to determine whether it is in Plaintiff's best interest to receive \$30,000 less in settlement proceeds.

Sixth, Petitioner has not adequately clarified the terms of the settlement between Plaintiff and Defendants County of Monterey and Richard Geng. [Petition at ¶ 10c.] The explanation regarding how Petitioner plans to allocate Plaintiff's settlement funds does not address the core question. [*Ibid.*] Since Petitioner intends to allocate \$35,000 of Plaintiff's settlement funds to her and Other Claimants, the Court now questions whether the settlement includes terms and conditions involving parties other than Plaintiff. Petitioner must submit documentation detailing the settlement's terms between the parties.

Accordingly, the Petition hearing is **CONTINUED** to September 18, 2026, at 8:30 a.m. in Department 14, and the Amended Petition is due by September 11.

NOTE RE TENTATIVE RULING

This tentative ruling becomes the court's order, and no hearing shall be held unless one of the parties contests it by following Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9. Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED.** You must notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.